



Laundy – Woy Woy Hotel

MN-40029

Phase 1 Determination

Acquisition may be put into effect

13 August 2026

1. Determination and statement of reasons

Notified acquisition	Laundry Woy Freehold Pty Ltd and Laundry Woy Trading Pty Ltd (Laundry) proposes to acquire the business assets, including the freehold land, of the Woy Woy Hotel from Amal Trustees Pty Limited as trustee for Harvest Pub Trust 2 and Harvest Pub Operations 2 Limited (Harvest Pub) (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	Laundry operates a portfolio of hospitality venues across New South Wales and Queensland, specialising in gaming, wagering, bistros, sports bars, retail liquor, entertainment and accommodation. Laundry currently owns and operates the Bayview Hotel located at 2/16, The Boulevard, Woy Woy, New South Wales. The Woy Woy Hotel, operated by Harvest Pub, offers on-premises hospitality services, entertainment, gaming facilities, and an onsite drive-through bottle shop located at 33-39 The Boulevard, Woy Woy, New South Wales.
Overlap between the parties	Laundry and Harvest Pub overlap in the retail supply of on-premises hospitality services (including bar service, casual dining, gaming facilities and entertainment) on the Woy Woy peninsula, New South Wales.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (ACCC) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form, additional information provided by the parties, and information from third parties. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition is unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following findings: ▪ The Woy Woy Hotel and Bayview Hotel compete closely, having regard to the on-premises hospitality services offered at each venue and their geographic proximity to each other. ▪ Post-acquisition, Laundry will continue to face competition from, and be constrained by, the following venues on the Woy Woy peninsula:

	– the licensed clubs, which provide a strong competitive constraint in the case of the Woy Woy peninsula, due to similar service offerings, often at lower price points. In particular, the Everglades Country Club targets similar customers and is relatively close to the Woy Woy Hotel and Bayview Hotel and is a larger venue that was recently renovated. – Other hotels and pubs located in Umina Beach and Ettalong Beach. While Umina Beach and Ettalong Beach venues are further away, for a high proportion of residents on the peninsula the travel time to attend the venue will be similar to the Woy Woy Hotel and Bayview Hotel.
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.

**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**